Brazoria County District Court

Cause No. 2023-CV-0003

Catherine Duffy, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 29, 2023
Plaintiff's counsel:	Kyle Sanders, Marshall & Dominguez LLP

PARTIES

Plaintiff Catherine Duffy is an individaul residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to do business in the State of Texas, which issued a policy of automobile insurance under which Plaintiff is entitled to benefits, including uninsured or underinsured motorist coverage and personal injury protection.

FACTS

On June 3, 2023, Plaintiff was lawfully operating his vehicle in Pearland, Texas, and was turning left at an intersection when a third-party vehicle struck Plaintiff's vehicle. The impact caused Plaintiff's vehicle to spin and sustained damage to its driver side. Plaintiff reported the collision promptly to Defendant and to law enforcement, and submitted a claim under the applicable coverages of his policy. Defendant has failed to pay the benefits owed under the policy in a timely and reasonable manner, and has not offered a fair settlement of Plaintiff's claim.

NEGLIGENCE

Defendant owed Plaintiff a contractual duty under the policy and a duty under Texas law to investigate, evaluate, and pay covered claims in good faith and without unreasonable delay. Defendant breached thsee duties by failing to conduct a reasonable investigation, by unreasonably delaying payment, and by refusing to pay benefits that were reasonably clear under the terms of the policy. Such conduct violates the Texas Insurance Code and the Texas Deceptive Trade Practices Act, and constitutes a breach of the insurance contract.

DAMAGES

As a direct result of the collision, Plaintiff suffered a neck and back strain, requiring medical evaluation, treatment, and ongoing physical therapy, and resulting in pain, limited mobility, and lost time from ordinary activities. Plaintiff has incurred mediacl expenses and will likely incur additional expenses in the future. Plaintiff seeks recovery of policy benefits, statutory damages, attorney's fees, and court costs. Plaintiff demands judgment against Defendant in the amount of $42,000.00, together with pre-judgment and post-judgment interest as allowed by law.